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2026.PHHC.087175



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-30014-2026
Decided On: 10.06.2026

SAHIL GARG

....PETITIONER(S)

VERSUS

STATE OF HARYANA

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Kamal Jindal, Advocate for the petitioner
(through hybrid mode)

Mr. Ved Parkash, Sr. DAG Haryana

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.0071 dated 07.03.2026 under Sections 34/420/467/468/471 of IPC (now Sections 3(5)/318(4)/338/336(3)/340(2) of BNS, 2023) registered at Police Station City Mandi Dabwali, District Dabwali (Annexure P-1).

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the FIR has been lodged at the instance of the complainant, who allegedly harbours personal animosity towards the petitioner and, while claiming to be a news reporter, is

stated to have a history of intimidating and blackmailing individuals. Counsel further submits that there is no documentary evidence on record linking the petitioner to the alleged offence. It is also submitted that the petitioner is ready and willing to join the investigation and to cooperate with the investigating agency as and when required.

On behalf of the State

Learned State counsel vehemently opposes the prayer made by learned counsel for the petitioner by stating that the allegations against the petitioner are grave and serious in nature. Moreover, if the petitioner is released on bail then he will not join the investigation nor will cooperate in the investigation.

3. Analysis

In the present case, it is apparent that the allegations primarily pertain to documentary evidence. Admittedly, no recovery is required to be effected from the petitioner. Moreover, the documents relied upon by the complainant are already in the custody of the Investigating Officer.

The petitioner has further undertaken, in para 18 of the present petition, that he is ready and willing to join the investigation and shall extend full cooperation to the investigating agency as and when required. In view of the aforesaid facts and circumstances, this Court finds no justification to deny the relief sought by the petitioner.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds

to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

- (i) a condition that the person shall make himself available for interrogation by a police officer as and when required;*
- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;*
- (iii) a condition that the person shall not leave India without the previous permission of the Court;*
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’*

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

10.06.2026

NainaRajput

Whether speaking/reasoned

: Yes/No

Whether reportable

: Yes/No